

24STCV15196 24STCV15196

County: los-angeles

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Department: 310

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Case Number: 24STCV15196 Hearing Date: August 27, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 27, 2026

Case Name: Immigrant Rights Defense Council, LLC v. Young, et al.

Case No.: 24STCV15196

Matter: Motion for Sanctions

Moving Party: Plaintiff Immigrant Rights Defense Council, LLC

Responding Party: Defendants Linda Young and Young & Young Int'l Consultant Group

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action relating to violations of the Immigration Consultants Act (ICA).

Plaintiff Immigrant Rights Defense Council, LLC now seeks terminating, evidence, issue, or monetary sanctions against Defendants Linda Young and Young & Young Int'l Consultant Group, contending that Defendants intentionally deleted aspects of their website in order to escape the ICA violations that are the subject of this suit.

"California discovery law authorizes a range of penalties for conduct amounting to 'misuse of the discovery process.' " (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) Misuses of the discovery process include "[u]sing a discovery method in a manner that does not comply with its specified procedures" (Code Civ. Proc. § 2023.010(b)); "[f]ailing to respond or to submit to an authorized method of discovery" (id., subd. (d)); "[m]aking an evasive response to discovery" (id., subd. (f)); and "[d]isobeying a court order to provide discovery" (id., subd. (g).)

Code Civ. Proc. § 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against "anyone engaging in conduct that is a misuse of the discovery process." In selecting the appropriate sanction, a trial court "should consider both the conduct being sanctioned and its effect on the party seeking discovery," and should tailor the sanction to fit the harm caused by the abuse of the discovery process. (Doppes, supra, 174 Cal.App.4th at p. 992.) "The trial court cannot impose sanctions for misuse of the discovery process as a punishment." (Ibid.)

A terminating sanction "is a proper sanction to punish the failure to comply with a rule or an order only if the court's authority cannot be vindicated through the imposition of a less severe alternative." (Rail Services of America v. State Comp. Ins. Fund (2003) 110 Cal.App.4th 323, 331 [concerning dismissal for a plaintiffs' refusal to comply with discovery]; see also Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].)

Spoliation is "the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.) A party seeking spoliation sanctions must make a prima facie showing that the responding party destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of its claim or defense. (Id. at 1227.)

Given that the core alleged ICA violations have been preserved via screenshots, discovery responses, and third party archives, the Court does not believe that sanctions are an appropriate remedy, particularly as the reasons for the deletions are disputed. The proper course is to discuss the changes to the website at trial.

The Motion is denied.

Moving party to give notice.